

CHAPTER 41.

An Act to make provision for the taking from time to time of a Census for Great Britain or any area therein and for otherwise obtaining Statistical Information with respect to the Population of Great Britain.
[16th August 1920.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Power to
direct taking
of census.

1.—(1) Subject to the provisions of this Act, it shall be lawful for His Majesty by Order in Council from time to time to direct that a census shall be taken for Great Britain, or for any part of Great Britain, and any Order under this section may prescribe—

- (a) the date on which the census is to be taken; and
- (b) the persons by whom and with respect to whom the returns for the purpose of the census are to be made; and
- (c) the particulars to be stated in the returns :

Provided that—

- (i) an Order shall not be made under this section so as to require a census to be taken in any part of Great Britain in any year unless at the commencement of that year at least five years have elapsed since the commencement of the year in which a census was last taken in that part of Great Britain; and
- (ii) no particulars shall be required to be stated other than particulars with respect to such matters as are mentioned in the Schedule to this Act.

(2) Before any Order in Council is made under this section, a draft thereof shall be laid before each House of Parliament for a period of not less than twenty days on which that House has sat, and, if either House before the expiration of that period presents an address to His Majesty against the draft or any part thereof, no further proceedings shall be taken thereon, but without prejudice to the making of a new draft Order : Provided that, if by part of any such Order it is proposed to prescribe any particulars with respect to any of the matters mentioned in paragraph six of the Schedule to this Act, that part of the Order shall not have effect unless both Houses by resolution approve that part of the draft, or, if any modifications in that part are agreed to by both Houses, except as so modified.

(3) Any Order in Council made under this section may be revoked, amended or varied by a subsequent Order.

2.—(1) It shall be the duty of the Registrar-General to make such arrangements and do all such things as are necessary for the taking of a census in accordance with the provisions of this Act and of any Order in Council or regulations made thereunder, and for that purpose to make arrangements for the preparation and issue of the necessary forms and instructions and for the collection of the forms when filled up.

Duty of Registrar-General to carry out census, and provision for expenses.

(2) The Registrar-General in the exercise of his powers and in the performance of his duties under this Act or under any Order in Council or regulations made thereunder, shall be subject to the control of, and comply with any directions given by, the Minister of Health.

(3) Any expenses incurred with the sanction of the Treasury by the Minister of Health or the Registrar-General in connection with the taking of a census or otherwise in connection with the exercise of his powers or the performance of his duties under this Act shall be defrayed out of moneys provided by Parliament.

3.—(1) For the purpose of enabling any Order in Council directing a census to be taken to be carried into effect, the Minister of Health may make regulations—

Regulations with respect to proceedings for taking census.

- (a) providing for the division of the country into districts for the purpose of the census and the appointment of persons to act in those districts in connection with the census;
- (b) requiring superintendent registrars, registrars, overseers and assistant overseers of the poor, relieving officers for poor law unions, collectors of the poor rate, and such other persons as may be employed for the purpose of the census, to perform such duties in connection with the taking of the census as may be prescribed;
- (c) requiring persons employed for the purpose of the census to make a statutory declaration with respect to the performance of their duties, and authorising any superintendent registrar or registrar to take such a declaration;
- (d) requiring the chief officers of public or charitable institutions, or of any other institutions prescribed by the regulations, to make returns with respect to the inmates thereof;
- (e) requiring information to be given to the persons liable to make returns by the persons with respect to whom the returns are to be made;
- (f) with respect to the forms to be used in the taking of a census;

- (g) making provision with respect to any other matters with respect to which it is necessary to make provision for the purpose of carrying into effect the provisions of the Order in Council.

(2) Every regulation made under this section shall be laid before both Houses of Parliament as soon as may be after it is made, and, if an address is presented to His Majesty by either House within the next subsequent twenty days on which that House has sat next after any such regulation is laid before it praying that the regulation may be annulled, His Majesty in Council may annul the regulation, and it shall thenceforth be void, but without prejudice to the validity of anything done thereunder.

Preparation
of reports
and
abstracts.

4.—(1) The Registrar-General shall, as soon as may be after the taking of a census, prepare reports on the census returns, and every such report shall be printed and laid before both Houses of Parliament.

(2) The Registrar-General may, if he so thinks fit, at the request and cost of any local authority or person, cause abstracts to be prepared containing any such statistical information, being information which is not contained in the reports made by him under this section and which in his opinion it is reasonable for that authority or person to require, as can be derived from the census returns.

Preparation
of statistics
in respect of
periods be-
tween one
census and
another.

5. It shall be the duty of the Registrar-General from time to time to collect and publish any available statistical information with respect to the number and condition of the population in the interval between one census and another, and otherwise to further the supply and provide for the better co-ordination of such information, and the Registrar-General may make arrangements with any Government Department or local authority for the purpose of acquiring any materials or information necessary for the purpose aforesaid.

Provision
with respect
to local
census.

6.—(1) If an application is made to the Minister of Health by a local authority to which this section applies asking that a census may be taken for the whole or any part of the area of the authority, or for an area consisting of the whole or any part of that area and of the whole or any part of an adjoining area, the Minister may, if he thinks fit, submit the application to His Majesty, and His Majesty may by Order in Council, if it appears to His Majesty expedient so to do for the purpose of facilitating the due performance by the local authority of its statutory duties, direct that a census shall be taken for the area specified in the application, or for any part of that area.

(2) The provisions of this Act with respect to the taking of a census for Great Britain (other than the provision with respect to the interval between one census and another) shall,

subject to such exceptions, modifications and adaptations as may be specified in the Order, apply to the taking of a census under this section.

(3) The local authorities to which this section applies are the common council of the City of London, metropolitan borough councils, the councils of counties, the councils of boroughs, and urban district councils :

Provided that, without prejudice to the power of any other authority being a local authority to which this section applies to make an application under this section, an application may be made by the council of a county and an order may be made under this section with respect to the whole of the area of the council, including the areas of any authorities which are local authorities for the purposes of this section.

7. Any expenses incurred in connection with the taking of a census under this Act in pursuance of an application made by a local authority, including the publication of any reports or returns relating to the census, shall be paid by the local authority by which the application for the census was made, and any expenses so incurred, and any other expenses incurred by a local authority under this Act, shall be defrayed in the case of the common council of the City of London and a metropolitan borough out of the general rate, in the case of a county council as expenses for general county purposes, and in the case of other councils as expenses incurred in the administration of the Public Health Acts, 1875 to 1908.

Expenses of
local authorities.

8.—(1) If any person—

Penalties.

- (a) refuses or neglects to comply with or acts in contravention of any of the provisions of this Act or any Order in Council or regulations made under this Act; or
- (b) being a person required under this Act to make a statutory declaration with respect to the performance of his duties, makes a false declaration; or
- (c) being a person required by any Order in Council or regulations made under this Act to make, sign, or deliver any document, makes, signs, or delivers, or causes to be made, signed, or delivered a false document; or
- (d) being a person required in pursuance of any such Order in Council or regulations to answer any question, refuses to answer or gives a false answer to that question;

he shall for each offence be liable on summary conviction to a fine not exceeding ten pounds.

(2) If any person—

- (a) being a person employed in taking a census, without lawful authority publishes or communicates to any person otherwise than in the ordinary course of

such employment any information acquired by him in the course of his employment; or

- (b) having possession of any information which to his knowledge has been disclosed in contravention of this Act, publishes or communicates that information to any other person;

he shall be guilty of a misdemeanor, and shall on conviction be liable to imprisonment with or without hard labour for a term not exceeding two years or to a fine, or to both such imprisonment and fine.

Application
to Scotland.

9. In the application of this Act to Scotland—

- (1) The Secretary for Scotland shall be substituted for the Minister of Health and the Registrar-General for Scotland shall be substituted for the Registrar-General;
- (2) The local authorities to which the section of this Act relating to the taking of a local census applies shall be the councils of counties and burghs, and any expenses incurred by such councils under this Act shall be defrayed in the case of a county council out of the general purposes rate, and in the case of a town council out of the burgh general improvement assessment or any other assessment leviable in equal proportions on owners and occupiers, provided that the ratepayers of a police burgh shall not be assessed by the county council for any such expenses;
- (3) Sheriffs, sheriff clerks, chief magistrates, county clerks, town clerks, inspectors of poor, and assistant inspectors of poor, shall, in connection with the taking of a census, perform such duties as may be prescribed by regulations made under this Act.

Short title
and extent.

10.—(1) This Act may be cited as the Census Act, 1920.

- (2) This Act shall not extend to Ireland.

SCHEDULE.

Section 1.

MATTERS IN RESPECT OF WHICH PARTICULARS MAY BE REQUIRED.

1. Names, sex, age.
2. Occupation, profession, trade or employment.
3. Nationality, birthplace, race, language.
4. Place of abode and character of dwelling.
5. Condition as to marriage, relation to head of family, issue born in marriage.
6. Any other matters with respect to which it is desirable to obtain statistical information with a view to ascertaining the social or civil condition of the population.